

19PSCV01127 19PSCV01127

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Division: Civil Law and Motion

Department: 408

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Case Number: 19PSCV01127 Hearing Date: July 23, 2026 Dept: 408

1.

Defendants

Hong Gia Huynh and Maggie Lo Huynh's Motion for

Attorney's Fees and Costs is GRANTED, in part, and DENIED, in part. Attorney's

fees are AWARDED, in favor of Defendants and against Plaintiff, in the reduced amount of \$134,680.42.

2.

Defendant

Yes 98 Cents, LLC's Motion for Attorney's Fees and

Costs is GRANTED, in part, and DENIED, in part. Attorney's fees are AWARDED, in

favor of Defendant and against Plaintiff, in the reduced amount of \$149,450.00.

I.

BACKGROUND

On December 17, 2019, Plaintiff Cal World El Monte,

LLC ("Plaintiff") filed a complaint against Defendants Brian Lai ("Lai"), AMCA

I, LLC ("AMCA"), Yes 98 Cents, LLC ("Yes 98"), Central Furniture and Home Store

("Central"), Pau Cun Liu ("Liu"), and Maggie Lo Huynh ("Huynh", collectively Defendants")

alleging causes of action for:

1.

Fraudulent Inducement into Contract;

2.

Negligent Misrepresentation;

3.

Breach of Duty of Good Faith and Fair Dealing;

4.

Unfair and Deceptive Business Practices (Bus. & Prof. Code § 17200, et seq.).

On April 8, 2020, pursuant to Plaintiff's request, default was entered against Liu.

On May 18, 2020, pursuant to Plaintiff's requests, default was entered against Lai, Central, and AMCA.

On July 30, 2020, Plaintiff filed an Amendment to the Complaint naming Does 1 and 2 as Nhuan Gia Huynh ("Nhuan") and Hong Gia Huynh ("Hong"), respectively.

On August 1, 2020, the court sustained Huynh's Demurrer to Plaintiff's complaint with leave to amend.

On September 1, 2020, Plaintiff filed a First Amended Complaint ("FAC").

On October 8, 2020, the court entered the parties' Stipulation to Vacate Entry of Default against Lai and AMCA.

On December 11, 2020, the court sustained Lai and Huynh's individual Demurrers to Plaintiff's FAC with leave to amend.

On January 6, 2021, Plaintiff filed a Second Amended Complaint ("SAC").

On March 23, 2021, pursuant to Plaintiff's request, default was entered against Nhuan.

On March 26, 2021, the court overruled Lai and AMCA's Demurrer and Huynh's Demurrer as to Plaintiff's SAC.

On April 8, 2021, Huynh filed an answer to Plaintiff's SAC.

On April 9, 2021, Lai and AMCA filed an answer to Plaintiff's SAC.

On June 16, 2022, the court denied Lai and AMCA's Motion for Summary Judgement, or in the alternative, Summary Adjudication, and denied Huynh's Motion for Summary Judgment, or in the alternative, Summary Adjudication.

On October 28, 2022, Huynh filed an answer to Plaintiff's SAC.

On December 13, 2022, Yes 98 filed an answer to Plaintiff's SAC.

On January 10, 2023, the court granted Nhuan's Motion to Set Aside/Vacate Default.

On September 21, 2023, the court denied Yes 98's Motion for Summary Judgment and denied Hong's Motion for Summary Judgment, or in the alternative, Summary Adjudication.

On September 28, 2023, the court granted Nhuan's Motion for Mandatory Dismissal for Failure to Serve with Three Years of Filing the Action.

On January 4, 2024, the court granted Nhuan's Motion for Attorney's Fees in the reduced amount of \$29,172.75.

On August 13, 2025, pursuant to Plaintiff's oral request, Lai and AMCA were dismissed with prejudice.

On September 15, 2025, following jury trial, Judgment was entered in favor of Plaintiff and against AMCA and Lai jointly and severally, in the amount of \$725,000.00, plus pre-judgment interest on the first, second, and third causes of action in Plaintiff's SAC, reducing the award to \$485,750.00, excluding any pre-judgment interest, on the second cause of action as the jury found Plaintiff 33% comparatively at fault; and against Plaintiff and in favor of Huynh, Hong, and Yes 98 on the first, second, and third causes of action in Plaintiff's SAC.

On November 4, 2025, the court denied Lai and AMCA's Motion for New Trial.

On

November 13, 2025, Lai and AMCA filed a Notice of Appeal on the Judgment.

On November

14, 2025, Hong and Huynh (“Moving Defendants”) filed this Motion for Attorney’s Fees and Costs. On January 9, 2026, Plaintiff filed an opposition. On November 15, 2026, Moving Defendants filed a reply.

On

November 14, 2025, Yes 98 filed this Motion for Attorney’s Fees and Costs. On January 9, 2026, Plaintiff filed an opposition. On November 15, 2026, Yes 98 filed a reply.

II.

DEFENDANTS

HONG GIA HUYNH AND MAGGIE LO HUYNH’S MOTION FOR ATTORNEY’S FEES AND COSTS

A.

Legal

Standard

A

prevailing party is entitled to recover its attorney’s fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10); Civ. Code, § 1717, subd. (a).) “A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney’s fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit.” (Bowman v. City of Berkeley (2005) 131 Cal.App.4th 173, 178.)

B.

Discussion

1.

Parties’

Arguments

Moving

Defendants move the court to award \$171,576.42[1]

in attorney's fees incurred in litigating this action through the instant motion. (Motion, at p. 9; Gross Decl., ¶¶ 7-8, Exhs. C-D.)

In opposition, Plaintiff disputes that Moving Defendants are entitled to recover their attorney's fees as Plaintiff's claims against Moving Defendants are exclusively in tort and do not arise from the breach of a contract. (Opp., at p. 2.) Alternatively, Plaintiff argues that the court should use its discretion to significantly reduce Moving Defendants' requested award. (Ibid.)

In reply, Moving Defendants argue that they are prevailing parties entitled to recover the requested attorney's fees and that the fees sought are reasonable. (Reply, at pp. 3-4.)

2.
Request
for Judicial Notice

Plaintiff and Moving Defendants' Requests for Judicial Notice are granted. "A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)

3.
Authority
for Fees & Prevailing Party

a.
Legal Standard

A prevailing party is entitled to recover costs, which can include attorney's fees, as a matter of right. (Code Civ. Proc., §§ 1032, subd. (a)(4); 1033.5, subd. (a)(10).) This right may arise out of contract, statute or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Additionally, a party prevailing on an action on a contract is entitled to attorney fees if the contract contains an attorney's fees provision. (Civ. Code, § 1717, subd. (a).)

b.

Discussion

On February 5, 2026, the court granted Hyunh's Motion for Non-Suit as to each cause of action in Plaintiff's SAC and Hong's Motion for Non-Suit as to the second and third causes of action. (Motion, at p. 3; Gross Decl., ¶¶ 3-5, Exhs. A-B.) On the remaining cause of action against Hong, the court entered Judgment in favor of Hong and against Plaintiff. (Ibid.)

Moving Defendants' recovery is based on the attorney's fee provision of Paragraph 26 found within the Commercial Property Purchase Agreement ("Purchase Agreement") attached as Exhibit "H" to Plaintiffs SAC, which provides, in relevant part, as follows:

ATTORNEY FEES: In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 34A.

(Motion RJN, Exh. 2; Gross Decl., ¶ 4, Exh. A.)

Moving Defendants recognize that Plaintiff sued them under an "alter ego" theory of liability and not as signatories to the Purchase Agreement. (Motion, at p. 6.) However, Moving Defendants argue that a nonsignatory may be entitled to contractual attorney's fees under contract if such party stands in the shoes of a signatory party. (Ibid.)

The court again notes that Plaintiff alleged that it entered into the Purchase Agreement with AMCA for the sale of the property located 10138 E. Garvey Ave., El Monte, CA 91733 ("Subject Property"), which included assignment of the rental agreements for the Subject Property to Yes 98 and Liu and Central. (Motion RJN, Exh. 3; SAC, ¶¶ 15, 19.) Plaintiff sued Moving Defendants for breach of duty of good faith and fair dealing, alleging that Moving Defendants were an alter ego and acted, jointly and severally, as the agent of the other Defendants. (SAC, ¶¶ 11, 13, 72.) In support, Plaintiff alleges that Defendants' conduct "unfairly interfered with Plaintiffs ability to receive the benefits under the Purchase Agreement ... in breach the implied covenant of good faith and fair dealing that exists in the Purchase Agreement." (Id., 176). Plaintiff also sought attorney's fees against all defendants in Paragraph 5 of its prayer for relief.

"As a general rule, [contractual] attorney fees are awarded only when the lawsuit is between signatories to the contract. However, under some circumstances, the Civil Code section 1717 reciprocity principles will be applied in actions involving signatory and nonsignatory parties," including "where the nonsignatory party 'stands in the shoes of a party to the contract.'" (Cargill, Inc. v. Souza (2011) 201 Cal.App.4th 962, 966 [citation omitted].)

In opposition, Plaintiff argues that there is no contractual cause of action in the SAC, and Plaintiff only sought relief under tort causes of action making Moving Defendants' reliance on Section 1717 erroneous. (Opp., at pp. 3-4.) However, Plaintiff's arguments fails to recognize the allegations against Moving Defendants and the cause of action arising from contract for breach of duty of good faith and fair dealing.

Accordingly, the court finds that Moving Defendants are entitled to attorney's fees as the prevailing parties pursuant to Civil Code section 1717.

4. Method of Calculation for Fees

a. Legal Standard

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b. Discussion

Considering

that neither party proposes a different method for calculating fees, the court uses the lodestar adjustment method.

5.

Reasonableness

of the Fees Claimed

a.

Reasonableness

of the Hourly Rates

i.

Legal Standard

“The

courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

ii.

Discussion

Moving

Defendants’ counsel claims an hourly rate of \$550.00 per hour for Counsel Kenneth Gross and \$225.00 per hour for Counsel Marianne Borselle. (Motion, at pp. 7-8; Gross Decl., ¶¶ 7-8; Borselle Decl., ¶¶ 1-2.) Moving

Defendants note that Counsel Marianne Borselle represented Huynh prior to retaining Counsel Kenneth Gross on September 1, 2023, to represent both Moving Defendants. (Ibid.)

After considering the information provided, the court

finds that the appropriate hourly rate for Counsel Kenneth Gross is \$500.00 per hour consistent with counsel's level of experience and \$225.00 per hour for Counsel Marianne Borselle.

b.

Reasonableness
of the Number of Hours

i.

Legal Standard

"Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii.

Discussion

Moving

Defendants claim that 215.64 hours were incurred by Counsel Kenneth Gross in litigating the instant action and 119.38 hours were incurred by Counsel Marianne Borselle. (Gross Decl., ¶ 7; Borselle Decl., ¶ 2-3, Exh. D.) Counsel Kenneth Gross requests an additional \$1,300.00 in fees for drafting the reply and appear at the hearing. (Reply, at p. 5.)

The

declaration and billing records provided by Moving Defendants' counsel are sufficient to meet the burden of proving the reasonableness of the claimed fees in terms of amounts and tasks. To satisfy this burden, evidence and

descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

The fees incurred are reasonable, as captured in the billing records submitted to this court. Counsel's billing records reflect the actual time and descriptions of services performed in connection with litigating this case. Although the submission of such detailed time records is not necessary under California law, if submitted, such records "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

Accordingly, the court grants attorney's fees in the reduced amount of \$107,820.00 comprised of 215.64 hours spent by Counsel Kenneth Gross and \$26,860.42 comprised of 119.38 hours incurred by Counsel Marianne Borselle at the hourly rate established above for total recovery of \$134,680.42. The court denies Moving Defendants' request for an additional \$1,300.00 in fees for drafting the reply and attending the hearing.

III.

DEFENDANT YES 98 CENTS, LLC'S MOTION FOR ATTORNEY'S FEES AND COSTS

A.

Legal
Standard

See
above.

B.

Discussion

1.

Parties'
Arguments

Yes 98

moves the court to award \$207,240.00 in attorney's fees incurred in litigating this action, plus \$6,500.00 in fees incurred in connection with this motion. (Motion, at pp. 1, 4, 8.)

In opposition, Plaintiff disputes that Yes 98 is entitled to recover its attorney's fees as Plaintiff's claims against Yes 98 are exclusively in tort and do not arise from the breach of a contract. (Opp., at p. 4.) Alternatively, Plaintiff argues that the court should use its discretion to significantly reduce the requested award. (Id., at pp. 5-6.)

In reply, Yes 98 argues that it is a prevailing party entitled to recover the requested attorney's fees and that the fees sought are reasonable. (Reply, at pp. 2-9.)

2.
Request
for Judicial Notice

Plaintiff's Request for Judicial Notice is granted. "A court may properly take judicial notice of its own records. (Evid. Code, § 452, subd. (e).)" (Garcia v. Sterling (1985) 176 Cal.App.3d 17, 21.)

3.
Authority
for Fees & Prevailing Party

a.
Legal Standard

A prevailing party is entitled to recover costs, which can include attorney's fees, as a matter of right. (Code Civ. Proc., §§ 1032, subd. (a)(4); 1033.5, subd. (a)(10).) This right may arise out of contract, statute or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Additionally, a party prevailing on an action on a contract is entitled to attorney fees if the contract contains an attorney's fees provision. (Civ. Code, § 1717, subd. (a).)¿

b.

Discussion

On

February 5, 2025, the court granted Yes 98's Motion for Non-Suit as to the second and third causes of action in Plaintiff's SAC. (Motion, at pp. 2-3.) On September 15, 2025, following jury trial, Judgment was

entered, in part, against Plaintiff and in favor of Huynh, Hong, and Yes 98 on the first, second, and third causes of action in Plaintiff's SAC. (Ibid.)

Yes 98's recovery is based on the attorney's fee provision of Paragraph 26 found within the Purchase Agreement attached as Exhibit "H" to Plaintiffs SAC. (Motion, at p. 3.) The court finds that Yes 98 is entitled to attorney's fees as the prevailing party pursuant to Civil Code section 1717 for the same reasons stated above.

4.

Method of
Calculation for Fees

a.

Legal Standard

In

determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (Ibid.)

b.

Discussion

Considering

that neither party proposes a different method for calculating fees, the court uses the lodestar adjustment method.

5.

Reasonableness
of the Fees Claimed

a.

Reasonableness
of the Hourly Rates

i.

Legal Standard

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437 [citations omitted].)

ii.

Discussion

Yes

98’s counsel claims an hourly rate of \$350.00 to \$750 per hour for Counsel Peter K. Levine and \$200.00 per hour for Counsel’s paralegal. (Motion, at p. 4; Levine Decl., ¶ 4, Exh. C.)

After considering the information provided, the court finds that the appropriate hourly rate for Counsel Peter K. Levine is \$500.00 per hour consistent with counsel’s level of experience. However, the court also finds that attorney’s fees should not be awarded for services provided by the paralegal staff. (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

b.

Reasonableness
of the Number of Hours

i.

Legal Standard

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 247 [cleaned up].)

ii.

Discussion

Yes

98’s counsel claims that 126.4 hours at \$750.00 per hour; 159.0 hours at \$650.00 per hour; and 13.5 hours at \$350.00 per hour were incurred by Counsel Peter K. Levine in litigating the instant action and 20.0 hours were incurred by Counsel’s paralegal. (Motion, at p. 4; Levine Decl., ¶ 4, Exh. C.) Counsel Peter K. Levine also requests an additional 10.0 hours in connection with this motion. (Levine Decl., ¶ 4.)

The

declaration and billing records provided by counsel are sufficient to meet the burden of proving the reasonableness of the claimed fees in terms of amounts and tasks. To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

The

fees incurred are reasonable, as captured in the billing records submitted to this court. Counsel's billing records reflect the actual time and descriptions of services performed in connection with litigating this case. Although the submission of such detailed time records is not necessary under California law, if submitted, such records "are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396.)

Accordingly,

the court grants attorney's fees in the reduced amount of \$149,450.00 comprised of 298.9 hours spent by Counsel Peter K. Levine at the hourly rate established above. However, the court will not grant attorney's fees on the hours spent by counsel's paralegal staff. (*Roe, supra*, 29 Cal.App.5th at 312.) The court denies the request for an additional \$6,500.00 in fees for this motion.

IV.

CONCLUSION

1.

Defendants Hong

Gia Huynh and Maggie Lo Huynh's Motion for Attorney's

Fees and Costs is GRANTED, in part, and DENIED, in part. Attorney's fees are

AWARDED, in favor of Defendants and against Plaintiff, in the reduced amount of \$134,680.42.

2.

Defendant Yes 98

Cents, LLC's Motion for Attorney's Fees and Costs is

GRANTED, in part and DENIED, in part. Attorney's fees are AWARDED, in favor of

Defendant and against Plaintiff, in the reduced amount of \$149,450.00.

[1]

The court notes that Moving

Defendants' requested award appears to be erroneously calculated. Counsel

Kenneth Gross requests an hourly rate of \$550.00 for 215.64 hours for a total of \$118,602.29 in fees, plus an additional \$1,300.00 for drafting the reply and

appearance at the hearing. (Gross Decl., ¶ 7; Reply, at p. 5.) Counsel Marianne

Borselle claims an hourly rate of \$225.00 per hour for 119.38 hours for a total

of \$26,860.42 in fees. (Borselle Decl., ¶ 2-3, Exh. D.) Accordingly, the fees

requested total \$146,762.71.